

24TRCV00717 24TRCV00717

County: los-angeles

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Case Number: 24TRCV00717 Hearing Date: July 2, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

LAURA MAYELA MORENO

, et al.;

Plaintiffs,

vs.

SUBARU OF AMERICA, INC.

;

Defendant.

Case

No.:

24TRCV00717

Hearing

Date:

July
2, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

DEFENDANT

SUBARU OF AMERICA, INC.'S MOTION TO STRIKE OR TAX PLAINTIFFS Laura Mayela
Moreno and Michael Moreno'S MEMORANDUM OF COSTS

MOVING PARTY: Defendant, Subaru of America,
Inc.

RESPONDING PARTY: Plaintiffs, Laura Mayela Moreno and
Michael Moreno

(1) Defendant Subaru of America, Inc.'s Motion
to Strike or Tax Plaintiffs Laura Mayela Moreno and Michael Moreno's Memorandum
of Costs is GRANTED pursuant to California Rules of Court, rule 3.1700(b).

The Court considers the moving
papers filed on April 2, 2026, the opposition brief filed on June 11, 2026, and
the reply brief filed on June 25, 2026.

BACKGROUND

Factual Background

On February 29,
2024, plaintiffs Laura Mayela Moreno and Michael Moreno
(collectively, "Plaintiffs") filed their Complaint against defendants Subaru of America, Inc. ("Defendant")
and DOES 1 through 50. The Complaint includes
the following causes of action: (1) Violation of Subdivision (d) of Civil Code
section 1793.2; (2) Violation of Subdivision (b) of Civil Code section 1793.2;

(3) Violation of Subdivision (a)(3) of Civil Code section 1793.2; (4) Breach of Express Written Warranty – Civil Code Sections 1791.2, subdivision (a), and 1794; and (5) Breach of the Implied Warranty of Merchantability – Civil Code sections 1791.1 and 1794.

On January 12, 2026,
Plaintiffs filed a Notice of Settlement of Entire Case.

On February 26,
2026, the parties executed the Settlement Agreement and Release. As part of this agreement, Plaintiffs received a sum of \$9,500.00 and were designated as the “prevailing parties” for the purposes of any motion for attorneys’ fees and costs.

On March 16, 2026,
Plaintiffs filed their Memorandum of Costs for \$1,764.15. (Declaration of Susan Suzy Haroutunian (“Haroutunian Decl.”), ¶ 4, Exh. A.)

LEGAL STANDARD

“Any notice of motion to strike or to tax costs must be served and filed 15 days after service of the costs memorandum. If the cost memorandum was served by mail, the period is extended as provided in Code of Civil Procedure section 1013.” (Cal. Rules of Court, rule 3.1700(b)(1).) The failure to timely file a motion to tax or strike costs constitutes a waiver of the right to object to costs. (Douglas v. Willis (1994) 27 Cal.App.4th 287, 289; see Cal. Rules of Court, rule 3.1700(b)(3) [“The party claiming costs and the party contesting costs may agree to extend the time for serving and filing the cost memorandum and a motion to strike or tax costs. This agreement must be confirmed in writing, specify the extended date for service, and be filed with the clerk. In the absence of an agreement, the court may extend the times for serving and filing the cost memorandum or the notice of motion to strike or tax costs for a period not to exceed 30 days.”].)

A prevailing party claiming costs must file and serve a memorandum of costs either (1) within 15 days after the date of service of a notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5, (2) 15 days after the service of written notice of

entry of judgment or dismissal, or (3) within 180 days after entry of judgment, whichever is first. (Cal. Rules of Court, rule 3.1700(a).) Any motion to strike or tax costs must be served and filed 15 days after service of the memorandum, plus an additional 5 days if served by mail or 2 days if served electronically. (Cal. Rules of Court, rule 3.1700(b)(1).) "Unless objection is made to the entire cost memorandum, the motion to strike or tax costs must refer to each item objected to by the same number and appear in the same order as the corresponding cost item claimed on the memorandum of costs and must state why the item is objectionable." (Cal. Rules of Court, rule 3.1700(b)(2).)

Code of Civil Procedure section 1033.5, subdivision (a), sets forth items allowable as costs.

Subdivision (b) lists the items that are not allowable as costs. Generally, the court has discretion to allow costs that are not barred by subdivision (b) but are not listed under subdivision (a). (Science

Applications Internat. Corp. v. Superior Court (1995) 39 Cal.App.4th 1095, 1103.) However, under the Song-Beverly

Consumer Warranty Act, if a buyer-plaintiff prevails in their action, "the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ.

Code, § 1794, subd. (d), emphasis added.)

"[I]n enacting Civil Code section 1794, subdivision (d) the Legislature intended the phrase costs and expenses to cover items not included in the detailed statutory definition of costs set forth in Code of Civil Procedure section 1033.5." (Warren v. Kia

Motors America, Inc. (2018) 30 Cal.App.5th 24, 42.) Therefore, a buyer-plaintiff in a Song-Beverly action may recover typically "barred" costs and expenses, provided they were reasonably incurred in connection with commencing and prosecuting the action.

If an item of costs is expressly allowed by statute and if items appear on their face to be proper, the verified memorandum of costs is prima facie evidence of their propriety, shifting the burden of proof to the objecting party to show that the items are not "reasonably necessary to

the conduct of the litigation" or "reasonable in amount." (Benach v. County of Los Angeles (2007) 149 Cal.App.4th 836, 855; Nelson v. Anderson (1999) 72 Cal.App.4th 111, 131-132 ["trial court erred in requiring additional proof from" the party claiming costs, where the party attacking costs had the burden]; Santantonio v. Westinghouse Broadcasting Co. (1994) 25 Cal.App.4th 102, 116, 121 [after a prima facie showing based on verified cost memorandum, objecting party has the burden to prove costs should be disallowed]; Ladas v. California State Auto. Assn. (1993) 19 Cal.App.4th 761, 773.)

But if an item of cost does not appear proper on its face, the burden of showing that it is reasonable and necessary shifts to the party claiming the cost. (Nelson v. Anderson (1999) 72 Cal.App.4th 111, 131 (Nelson); Jones v. Dumrichob (1998) 63 Cal.App.4th 1258, 1267; see Bach v. County of Butte (1989) 215 Cal.App.3d 294, 308 ["Only after such costs are challenged by a motion to tax do the parties need to justify their claims by submitting documentation of the costs they have incurred."].)

DISCUSSION

Defendant contend that the Court should either strike the entire memorandum of costs or, alternatively, reduce the costs by \$1,298.23; this amount includes: (1) \$152.86 in filing and motion fees; (2) \$150.00 in jury fees; (3) \$116.39 in service of process fees; and (4) \$879.00 for a deposition transcript. (Motion, pp. 1:26-2:6.)

Plaintiffs, who are the prevailing parties in this Song-Beverly case, are requesting reimbursement for the following costs: (1) \$587.96 in filing and motion fees; (2) \$150.00 in jury fees; (3) \$147.29 in service of process fees; and (4) \$879.00 for a deposition transcript. (Haroutunian Decl., Exh. A.)

Filing fees, jury fees, service of process fees, and deposition costs are expressly authorized under Code of Civil Procedure section 1033.5, subdivisions (a)(1), (a)(3)(A), and (a)(4). Given that these expenses are explicitly permitted and appear proper, the verified memorandum of costs is prima facie evidence of their propriety. This places the burden of proof on Defendant to demonstrate that the costs were not "reasonably necessary to the conduct of the litigation" or "reasonable in amount." (Benach, supra,

149 Cal.App.4th at p. 855.)

Here, Defendant contends that the Court should strike the entire memorandum of costs, as Plaintiffs have failed to attach any invoices or receipts that would demonstrate that the costs were actually incurred. (Motion, p. 3:15-19.) Furthermore, Defendant posits that “[i]f Plaintiffs choose to submit documentation to meet their burden, the Court should, by default, strike any claimed costs which are not supported by documentation, in addition to any unreasonable or improperly claimed costs to which [Defendant] objects.” (Motion, p. 3:20-22.)

It is Defendants’ burden to demonstrate that the claimed costs were either not reasonably incurred in connection with the litigation or were unreasonable in amount, particularly after Plaintiffs have provided a memorandum of costs that serves as prima facie evidence of their validity. The Court finds that Defendant has satisfied this burden by highlighting Plaintiffs’ failure to provide evidence that substantiates the incurred costs. Consequently, Plaintiffs must demonstrate that the claimed costs were incurred in their opposition. (Bach v. County of Butte (1989) 215 Cal.App.3d 294, 308 [“Only after such costs are challenged by a motion to tax do the parties need to justify their claims by submitting documentation of the costs they have incurred.”].)

Here, Plaintiffs failed to attach any invoices or receipts to prove that they paid any of the claimed costs. Although Plaintiffs are not required to include receipts or invoices when filing their memorandum of costs, their failure to provide such documentation in their opposition prevents the Court from ascertaining whether the claimed costs were reasonably incurred, and/or were, in fact, incurred.

As such, Defendant’s motion is GRANTED.

ORDERS

1) Defendant
Subaru of America, Inc.’s Motion to Strike or Tax Plaintiffs Laura Mayela

Moreno and Michael Moreno's Memorandum of Costs is GRANTED.

2)

The Court strikes Plaintiffs' memorandum of costs.

3) Defendant

is ordered to provide notice of this Court's ruling.

IT IS SO ORDERED.

DATED: July 2, 2026

Tamara
Hall

Judge
of the Superior Court